

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC043718: VICTORIANO PEREA, et al. vs RAUL R. VASQUEZ, et al.

09/08/2026 in Department 43

Motion for Judgment on the Pleadings

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants' Motion for Judgment on the Pleadings on Plaintiff's Complaint.

Tentative Ruling: Defendants Raul and Dolores Vasquez's Motion for Judgment on the Pleadings as to the Fifth Cause of Action and Prayer for Punitive Damages is DENIED.

Plaintiff is ordered to serve notice of the Court's ruling.

DISCUSSION

Defendants argue the Complaint fails to allege, with sufficient particularity, any outrageous conduct that is so extreme that it exceeds all bounds of behavior tolerated in a civilized community and no facts alleged to support a claim that Defendants' conduct was engaged in with the knowledge that injury would occur.

Defendants further argue Plaintiffs' prayer for punitive damages is not sufficiently plead because the Complaint does not allege facts showing malice, oppression, or fraud.

The elements of the tort for intentional infliction of mental distress are: (1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of emotional distress (*Newby* standard). (*Newby v. Riviera Apartments* (1976) 60 Cal.App.3d 288, 296, disapproved on another ground in *Marina Point, Ltd. v. Wolfson* (1982) 30 Cal. 3d 721, 724.)

“A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant’s conduct must be intended to inflict injury or engaged in with the realization that injury will result.” (*Potter, supra*, 6 Cal.4th at p. 1001.)

“[T]he availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress.” (*Stoiber v. Honeychuck* (1980) 101 Cal. App. 3d 903 (*Stoiber*), 922.) In *Stoiber*, the court concluded that based on the allegations a question of fact, and not law, was presented. (*Ibid.*) As summarized in *Stoiber*, the sufficient facts pled included “that defendant had actual knowledge of defective conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions,” and that defendants “ ‘[i]n maintaining said nuisance, ... acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious.’ ” (*Id.* at p. 920.)

In *Aweeka v. Bonds* (1971) 20 Cal.App.3d 278, the court held that where a landlord is fully aware of a property's substantial habitability defects and intentionally fails to repair them (or worse, retaliates against the tenant), the tenant may bring an independent tort claim for emotional distress and seek punitive damages.

The Complaint here pleads sufficient facts in support of the claim for intentional infliction of emotional distress. Amongst other facts pled, direct notice to Defendants of the cockroach infestation and mold problems, the duration of said problems, and Defendants’ intentional refusals and failures to remediate. Paragraph 54 specifically alleges that Defendants alleged actions rose to the level of an intentional and conscious disregard for Plaintiffs’ health and safety and subjected Plaintiffs to cruel and unjust hardship by causing them to unreasonably live with the substandard and dangerous conditions on the subject property. Whether Plaintiffs establish that the facts alleged rise to the level of, for example, outrageous conduct “so extreme as to exceed all bounds of that usually tolerated in a civilized society” or that Defendants’ conduct in maintaining the premises was “reckless, malicious, and undertaken with a conscious disregard for Plaintiffs’ rights and well-being” are questions for the trier of fact to determine. The facts pled are to sustain a pleading of intentional infliction of emotional distress and a claim of punitive damages.

The Court notes that Plaintiff submitted extrinsic evidence in opposition to the motion. Because a Motion for Judgment on the Pleadings is confined to the four corners of the complaint, the Court has not considered this evidence.